

STATE OF NEW YORK
WESTCHESTER COUNTY: YONKERS FAMILY COURT

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IN THE MATTER OF:

TARA KATELYN WALSH,	FILE NO: 154703
Petitioner/Respondent,	DOCKET NO.: V-07641-18
	V-07641-18/21T
	V-07641-18/21V
- vs. -	V-07641-18/21W
	V-05280-21
STEPHEN GRANT RUSSELL,	0-03599-20
Respondent/Petitioner.	0-12635-19/21I
	0-12635-19
	0-12635-19/21J

-----X
LINDA RUSSELL, DOCKET NO.: V-07641-18/21S
Petitioner/Respondent, V-07641-18/21X
- vs. -

TARA KATELYN WALSH,
Respondent/Petitioner.

-----X
Virtual Proceeding
131 Warburton Avenue, Third Floor
Yonkers, New York 10701
August 27, 2021

BEFORE: HONORABLE MICHELLE I. SCHAUER, Part 17

APPEARANCES: CHRISTOPHER SCOTT WEDDLE, ESQ.
Attorney for Tara Walsh
MASSIMO DIFABIO, ESQ.
Attorney for Stephen G. Russell
JENNIFER MARIE JACKMAN, ESQ.
Attorney for the Child
STEPHEN RUSSELL, Respondent/Petitioner, Pro Se
LINDA RUSSELL, Petitioner/Respondent, Pro Se

ALSO PRESENT: Tara Walsh, Petitioner/Respondent

Digital Recorded Proceeding, Valeri Wilson, Transcriber

1 (10:36:50 a.m.)

2 COURT OFFICER: Good morning. Today is August
3 27, 2021. This is the Yonkers Family Court, Part 17, Judge
4 Michelle I. Schauer presiding in the matter of Walsh and
5 Russell, file number 154703. Counsel, please state your
6 appearance for the record starting with Mr. Weddle.

7 MR. WEDDLE: Chris Weddle, Timko and Moses, 1
8 North Broadway, White Plains, New York, appearing for Tara
9 Walsh. Good morning, Your Honor. Good morning, everyone.

10 THE COURT: Good morning.

11 COURT OFFICER: Mr. Difabio?

12 MR. DIFABIO: Good morning, Your Honor. Max
13 Difabio for Mr. Russell and also Ms. Linda Russell.

14 COURT OFFICER: Thank you. Ms. Jackman?

15 MS. JACKMAN: Good morning, Your Honor. Jennifer
16 Jackman, attorney assigned to represent the child, Evelyn
17 Walsh.

18 COURT OFFICER: Thank you. Ms. Linda Russell,
19 can you please raise your right hand? Do you solemnly
20 swear or affirm to tell the truth?

21 L I N D A R U S S E L L, a witness herein, was
22 examined and testified as follows:

23 MS. RUSSELL: Yes.

24 COURT OFFICER: Can you please state your name
25 and address unless confidential?

1 MS. RUSSELL: My name is Linda Russell. It's 407
2 East Mohoning Street, Punxsutawney, Pennsylvania.

3 COURT OFFICER: Thank you. Ms. Walsh, can you
4 please raise your right?

5 MS. RUSSELL: Do I --

6 MS. WALSH: Yes.

7 COURT OFFICER: Do you solemnly swear or affirm
8 to tell the truth?

9 T A R A W A L S H, a witness herein, was
10 examined and testified as follows:

11 MS. WALSH: I do.

12 COURT OFFICER: Thank you. Please state your
13 name and address unless the address is confidential.

14 MS. WALSH: My name is Tara Walsh and my address
15 is confidential.

16 COURT OFFICER: Thank you.

17 MR. DIFABIO: Your Honor? Your Honor, I'm sorry
18 to interrupt. My client just texted me about the Teams
19 link. So I'm going to resend it to him right now if you
20 don't mind?

21 THE COURT: Sure, go ahead.

22 MR. DIFABIO: Okay.

23 THE CLERK: And just so you know, Judge, I
24 forwarded it to him as well.

25 THE COURT: Yeah, my clerk sent it to him as well

1 and he --

2 THE CLERK: Just about 30 seconds ago.

3 THE COURT: Yeah, about 30 seconds ago.

4 MR. DIFABIO: I'm texting him that, Your Honor.

5 THE COURT: What's that?

6 MR. DIFABIO: I'm texting him what you just said.

7 (Pause)

8 MR. DIFABIO: Judge, he's logging on.

9 THE COURT: All right, thank you.

10 (Pause)

11 THE COURT: We're letting him in now.

12 MR. RUSSELL: Good morning.

13 COURT OFFICER: Good morning, Mr. Russell. Can
14 you please raise your right hand? Do you solemnly swear or
15 affirm to tell the truth?

16 S T E P H E N G R A N T R U S S E L L, a
17 witness herein, was examined and testified as follows:

18 MR. RUSSELL: I do.

19 COURT OFFICER: Can you please state your name
20 and address unless the address is confidential?

21 MR. RUSSELL: Stephen Grant Russell, 107 Bernard
22 Street, San Francisco, California, 94109.

23 COURT OFFICER: Thank you.

24 THE COURT: Before we begin, I would like to
25 remind you that the rules of the chief judge provide that

1 recording, broadcasting, or streaming of court proceedings
2 is not permitted. Accordingly, I'm ordering you not to
3 record this broadcast or stream these court proceedings.
4 The Court is making the only official record of this
5 proceeding and any violation can be prosecuted as Contempt
6 of Court punishable by fine or imprisonment pursuant to
7 Judiciary Law Section 750.

8 So we're here for a conference on a number of
9 petitions and some new things have been filed. The first
10 thing I would like to address is the Order to Show Cause
11 filed by Mr. Difabio asking to be relieved from
12 representing both Mr. Russell and Linda Russell.
13 Mr. Russell, were you served with Mr. Difabio's Order to
14 Show Cause?

15 MR. RUSSELL: Indeed. I'm ready to represent
16 myself, Your Honor. I understand the risks and I
17 appreciate you taking the time today to hear from me in
18 person on that matter, but I'm looking forward to
19 representing myself pro se.

20 THE COURT: Okay. Ms. Russell, you understand
21 that Mr. Difabio filed an Order to Show Cause asking to be
22 relieved from representing you?

23 MS. RUSSELL: Yes.

24 THE COURT: And what is your position with
25 respect to that request?

1 MS. RUSSELL: I -- I agree.

2 THE COURT: You agree for him to be relieved?

3 MS. RUSSELL: He's no longer my attorney.

4 THE COURT: He's no longer your attorney? Okay.

5 Thank you. You're free to go, Mr. Difabio.

6 MR. DIFABIO: Thank you, Your Honor. Good luck,
7 everyone.

8 MR. RUSSELL: Thanks a lot, Max. Thank you for
9 everything. Have a great day.

10 MR. DIFABIO: Thank you.

11 THE COURT: Okay. Moving on, we had an Order to
12 Show Cause filed last night by Ms. Jackman. I don't know
13 if you've had the opportunity to serve everybody.

14 MS. JACKMAN: Yes, Judge. Service was
15 effectuated in accordance with the Order to Show Cause that
16 was signed by Your Honor.

17 THE COURT: Okay. So have you seen it,
18 Mr. Russell?

19 MR. RUSSELL: I have not read it in detail, but I
20 spoke to Ms. Jackman about it on the phone and I -- you
21 know, I don't -- do not object. I appreciate her services
22 very much and I think she's making the right decision.

23 THE COURT: Okay. So you're consenting.
24 Mr. Weddle? You're muted.

25 MR. WEDDLE: I received a copy of the Order to

1 Show Cause. I've spoken to my client about it and I've
2 spoken to Ms. Jackman about it and I have no objection.

3 THE COURT: So Ms. Jackman's Order to Show Cause
4 is granted on consent. You are relieved, Ms. Jackman.

5 That leaves us without an attorney for the child,
6 so there will be limited progress we can make with today's
7 proceeding until I assign a new attorney to represent the
8 child.

9 MS. JACKMAN: Thank you, Your Honor. May I be
10 excused?

11 THE COURT: Yes. But what we can discuss just
12 from a procedural perspective is I don't know what was
13 filed this morning, Mr. Russell?

14 MR. RUSSELL: Would you like me to go through
15 those quickly?

16 THE COURT: They're Family Offense petitions? It
17 looks like this --

18 MR. RUSSELL: The first was the motion yesterday
19 that you requested be subject to today, so it was
20 reformatted so that it would not be a Family Offense
21 petition.

22 The second is that there's some mistake about the
23 status of the case, what's before you, after Judge Humphrey
24 and Horowitz understandably given, you know, how -- you
25 know, how complicated that is. And then a third motion as

1 well.

2 THE COURT: Okay. Did you serve those motions on
3 Mr. Weddle?

4 MR. RUSSELL: My understanding is that because of
5 the confidentiality ruling that Tara is under that service
6 can be through either the clerk or Mr. Weddle. I'll ask
7 Mr. Weddle if Max sent it to him prior to him stepping down
8 as -- as counsel, as he's no longer in the room with us.

9 THE COURT: Mr. Weddle, are you willing to accept
10 service of these motions? I believe there's two of them.
11 One is captioned Motion for Case Schedule and Clarification
12 of Issues Before the Court. And just let me pull up the
13 other one. The other one is Motion for Inquiry into
14 Walsh's Financial Condition and Termination of Appointed
15 Counsel Based on Alleged Financial Hardship. Mr. Weddle?

16 MR. WEDDLE: I'll accept service, Judge. I
17 haven't seen them.

18 THE COURT: All right. So I'll have my clerk
19 forward those to you.

20 MR. WEDDLE: Thank you.

21 THE COURT: So without an attorney for the child
22 here today, as I said, there's going to be limited things
23 that we could do. So you can ask; I'm not sure I'll be
24 able to grant any relief today.

25 MR. RUSSELL: One thing, Your Honor, I think

1 might be very helpful is just to kind of walk through, you
2 know, your very first, and I thought great, question the
3 first time we met and got together was what was actually
4 before us?

5 It was pretty complicated at that point in time.
6 We had had a situation where Judge Humphrey had sat between
7 -- sat for Judge Horowitz and Judge Horowitz had issued, at
8 that point in time, two final orders.

9 One final order was -- we are aware of. We
10 received in October/November time frame of last year and
11 the other final order was, dated May 19th, was given only
12 to Ms. Walsh ex parte. We learned about that final order
13 in November during a conference with her.

14 A Motion to Vacate was filed with you and you
15 granted that Motion to Vacate. What that Motion to Vacate
16 did was eliminate the first secret final order, but kept
17 the second final order in place.

18 THE COURT: So I don't -- I don't think that's
19 accurate, Mr. Russell. But I think I agree with you that
20 we need to, at this point, try to just clarify what
21 happened.

22 I believe what happened is after going through
23 the dockets, Ms. Walsh with her counsel consented to vacate
24 Judge Morales-Horowitz default against you. So those
25 defaults resulted in a permanent Order of Protection and a

1 custody order. So vacating those defaults reinstated those
2 petitions and I know there was --

3 MR. RUSSELL: Respectfully, Your Honor, the text
4 of -- of what we filed was -- was written in a -- in a
5 particular way to address a very particular issue. I -- it
6 was very strange that Horowitz had issued two final orders.
7 It was very strange that one of those final orders had been
8 given to Ms. Walsh directly. It was very strange that
9 there were refusals from the Court to provide us copies
10 with the docket or that final order.

11 THE COURT: Okay, Mr. Russell, you're muddying
12 the record here. Those -- whatever those orders were, they
13 were vacated. So there's no point really in discussing
14 them anymore. The orders were vacated, but the underlying
15 petitions remained. That's why we are still addressing
16 Ms. Walsh's custody petition and her Family Offense
17 petition. You subsequently --

18 MR. RUSSELL: I'll just --

19 THE COURT: -- recently actually -- I think it's
20 on for a preliminary proceeding today. On July 27th, you
21 filed a petition seeking custody and visitation.

22 MR. RUSSELL: Everything --

23 THE COURT: That's scheduled for a preliminary
24 proceeding today. Did you serve --

25 MR. RUSSELL: That's all --

1 THE COURT: What's that?

2 MR. RUSSELL: I -- I don't know that I have, Your
3 Honor and -- but before --

4 THE COURT: You don't know that you have what?
5 Filed a custody petition?

6 MR. RUSSELL: With -- if you'll indulge me, I'd
7 like to address your previous point, then this point, just
8 because I'm having a little trouble kind of catching up
9 with the new topic.

10 We did not vacate Horowitz's October decision.
11 It was deliberately -- the Motion to Vacate was
12 deliberately written so as her October decision was not
13 vacated. Again, this is not your fault. She did a very
14 odd thing. But her October decision dismissed all the
15 petitioner's claims. So we did not dismiss that final
16 order.

17 The sole purpose of our Motion to Vacate was to
18 address this very unusual situation where, without a
19 hearing and ex parte, a secret final order had been given
20 to Ms. Walsh. Upon your executing that Motion to Vacate
21 the October order, that simply said all the petitioner's
22 claims are dismissed, remained in effect.

23 And you are right. There is still a custody
24 order before you because we have filed. But I do not know
25 if we have served. I've -- that would be a question for

1 Mr. Weddle to answer at this point.

2 MR. WEDDLE: I'm -- I'm looking, Judge. This
3 file is rather large.

4 THE COURT: Right, and it keeps getting muddled
5 by -- I keep saying to stop filing petitions that are
6 redundant. They repeat the same claims over and over and
7 over and over and -- and that's why we sit here and spend a
8 lot of time discussing procedural issues and not
9 substantive issues.

10 MR. RUSSELL: Your Honor, that's -- in this case,
11 I'm attempting to clean up the docket. I have never --
12 I --

13 THE COURT: Okay. So, but then answer -- Mr.
14 Russell?

15 MR. RUSSELL: Yes?

16 THE COURT: I know what I need to know.

17 MR. RUSSELL: Yeah.

18 THE COURT: So it's helpful if you just try to
19 answer my questions. And certainly when we go to a trial,
20 it's going to be very difficult if you don't listen to the
21 question and answer what's asked.

22 So, okay, I did vacate, Judge, and this was on
23 consent, Morales-Horowitz's order to the extent that she
24 issued on default a permanent Order of Protection against
25 you on behalf of Ms. Walsh and a custody order. So to the

1 extent that she dismissed your petitions, I don't know that
2 I specifically reinstated them.

3 In any event, you have filed several new
4 petitions, and so I think that your requested relief is
5 incorporated in these new petitions; one of which was filed
6 on July 27th and you're seeking custody and visitation.

7 MR. RUSSELL: There -- there are --

8 MR. WEDDLE: If you'll excuse me, may I?

9 MR. RUSSELL: Yeah, of course, of course,
10 Mr. Weddle.

11 MR. WEDDLE: Judge, I am in receipt of the
12 July 27 petition.

13 THE COURT: Okay. So are you acknowledging
14 service?

15 MR. WEDDLE: I'll acknowledge service.

16 THE COURT: And your position?

17 MR. WEDDLE: My position is I'm entering a
18 denial. I believe custody should stay with Ms. Walsh.

19 THE COURT: Okay.

20 MR. WEDDLE: However, Judge, can I make one other
21 comment?

22 THE COURT: Yes.

23 MR. WEDDLE: All right. Well, just in terms of
24 what we can accomplish today, I -- I do not see why the
25 Court's order for forensics needs to be stayed until an AFC

1 is appointed. That's a little --

2 THE COURT: It's not. I just haven't gotten to
3 that issue yet.

4 MR. WEDDLE: All right. Sorry, Judge. I didn't
5 mean to get ahead of you.

6 MR. RUSSELL: The last thing I'll just say, Your
7 Honor. I think that what you just read is not inconsistent
8 with what I stated.

9 The October order of Horowitz was left in place.
10 It is -- given the complexity and how much paper is in this
11 case, it's understandable that that mistake was made, but
12 we wrote the Motion to Vacate and we wrote it specifically
13 to get rid of an order that we did not receive that was
14 dated in May.

15 There was a subsequent order in October that
16 simply and flatly dismissed all the petitioner's claims.
17 This is an opportunity to clear the deck. You had asked
18 that I refile my custody claims and I think Max did.

19 THE COURT: That's correct. So --

20 MR. RUSSELL: And --

21 THE COURT: So I now have a petition by which you
22 are seeking custody and visits with your daughter. So that
23 issue has been restored.

24 MR. RUSSELL: In Ms. Walsh's case, she has not
25 refiled and her -- the claims upon which she based

1 jurisdiction here, as well as her claim of custody, have
2 been dismissed with prejudice in the San Francisco court.

3 THE COURT: So that jurisdictional issue is worth
4 discussing.

5 MR. WEDDLE: That jurisdictional issue was
6 resolved, Your Honor.

7 THE COURT: I believe that I read it was resolved
8 before Judge Gordon-Oliver.

9 MR. WEDDLE: That is correct and pursuant to the
10 CJID (sic), did I get that right, the California court and
11 the New York court did communicate and agree that New York
12 should have jurisdiction. I've seen that -- I've seen that
13 actually just recently affirmed in the decision by a
14 California appeals court that New York had jurisdiction
15 over the custody issue.

16 If I may, Judge, I think essentially if you throw
17 out all the chaff, all you have before you are cross
18 petitions for custody and visitation and cross Family
19 Offense petitions.

20 MR. RUSSELL: Mr. Weddle is not correct.

21 THE COURT: Correct. That's my understanding and
22 I did see notes in the file. I just want to be accurate,
23 Mr. Russell. I did see -- and I'm looking for them now, so
24 that I can be accurate in what I state. But I do recall
25 seeing notes that Judge Gordon-Oliver did do that inquiry

1 and did -- it was concluded with a decision that New York
2 would retain jurisdiction.

3 MR. RUSSELL: It's -- that's not correct,
4 (inaudible) to be sort of beneficial or meaningful to you,
5 I'll -- I'll comment on it since Mr. Weddle was not present
6 for this piece. The -- at the point in time that Ms. Walsh
7 left for a quote vacation --

8 MS. WALSH: Can I just say something, Your Honor?
9 Because I'm -- I'm very concerned that Mr. Russell --

10 MR. WEDDLE: No --

11 MR. WEDDLE: -- is just trying to read a
12 transcript to use on his website.

13 MR. WEDDLE: -- I'm -- I'm sorry. Just we're
14 doing one thing at a time here.

15 MS. WALSH: Okay.

16 MR. RUSSELL: And, Judge --

17 MR. WEDDLE: And I think what --

18 THE COURT: I just want to ask you, Mr. Russell,
19 what --

20 MR. RUSSELL: Correct.

21 THE COURT: -- what transcript? Because I know
22 you've been ordering, it seems like, all of the
23 transcripts. So you tell me why you believe New York did
24 not retain jurisdiction. By -- by -- not by statements,
25 but by either a transcript or a motion or an order, some

1 piece of paper that I can look at that would support what
2 you're saying.

3 MR. RUSSELL: My -- my statement was that what
4 Mr. Weddle said was not great, but -- and not correct, but
5 I take your point. So there -- if you'll indulge me on two
6 minutes of -- of context here.

7 I'd been granted custody. There was a court date
8 scheduled for October 2018. Tara's father negotiated a
9 two-to-three-week vacation ostensibly to see her family and
10 her doctors. And this was negotiated between attorneys as
11 a short-term carve out to that court order. Otherwise,
12 Tara was in violation -- would be in violation of a court
13 order leaving the state. Your Honor once admonished me
14 that -- to help Tara understand that I would never leave
15 the state with Evie, that this would be something that
16 would immediately terminate any hope that I had for, you
17 know, parental rights in the short term.

18 THE COURT: Okay. Can I just --

19 MR. RUSSELL: That --

20 THE COURT: Can I just stop you for a moment
21 because I found the note that I was referring to?

22 MR. RUSSELL: Uh-huh.

23 THE COURT: On September 11th, 2018, before
24 Judge Gordon-Oliver --

25 MR. RUSSELL: Uh-huh.

1 THE COURT: -- the notes say -- now I'm not
2 saying these are true. I'm just telling you what I'm
3 reading in the notes.

4 Parties have agreed to drop Family Offense
5 petitions in New York and California. Parties have agreed
6 to have visits supervised by Delia Farquharson. Parties
7 have agreed that New York is the proper jurisdiction.
8 Respondent Father will likely get a place in New York if
9 Court will permit him to have overnights if his mother
10 comes out and lives with them. Court denies overnights at
11 this time. Court orders both parties to undergo drug
12 screening forthwith.

13 MR. RUSSELL: So, I mean, this is -- there's some
14 real useful bits in there. And so that document did exist,
15 but it's not as described. There was a conference call
16 prior to court, as, you know, as you would expect between
17 the judge in San Francisco attempting to maintain custody
18 -- or, sorry, jurisdiction in San Francisco and the -- and
19 Gordon-Oliver, of course, was on that call. The transcript
20 of that call is available. It's a very interesting and
21 one-sided call.

22 Honorable Gordon-Oliver's position on the call
23 was the same position in -- in court. Jurisdiction is
24 mine. If you challenge it, you will lose. The only way to
25 see your daughter is, you know, starting today to go see

1 your daughter with what turned out to be the second of
2 three friends.

3 THE COURT: All right. So, again, let me just
4 interrupt, Mr. Russell, because you're wasting time
5 discussing things that are, at this point, resolved and not
6 an issue.

7 I am now looking at an order from Honorable Roger
8 Chan, a judge of Superior Court of California, County of
9 San Francisco, Unified Family Court. That is an order
10 dismissing proceedings. It is dated September 28th, 2018.
11 The Superior Court of the State of California, County of
12 San Francisco, declines to exercise jurisdiction and the
13 Petition to Establish Parental Relationship filed on
14 June 4th, 2018 and all related proceedings are hereby
15 dismissed.

16 New York has jurisdiction over these proceedings,
17 and if you are objecting to that, the time has far passed
18 for you to file an appeal from the California order. So we
19 are not spending any more time about whether or not New
20 York has jurisdiction.

21 I'm also looking at an order from -- from
22 Judge Gordon-Oliver dated September 11th, 2018, in which it
23 says exactly what I just said was reflected in the notes.

24 MR. RUSSELL: I -- I assume the answer to the
25 (inaudible) --

1 THE COURT: Petitioner shall withdraw her Order
2 of Protection and Violation. Petitioner and Respondent
3 shall withdraw his Order of Protection in California and
4 violation petitions. Respondent shall also contact the
5 California police and state that he does not wish to press
6 criminal charges against Petitioner for, does it say,
7 drugging? And, if necessary, the parties will enter into a
8 written agreement concerning these issues. The parties
9 consent to New York having jurisdiction over this.

10 I am not discussing jurisdiction any more. It is
11 done, for better or worse, Mr. Russell. There are court
12 orders. I'm not an appellate court. I can't reverse these
13 orders and your time to appeal has expired. So New York
14 has jurisdiction.

15 MR. RUSSELL: Your Honor, I -- I -- I -- I can
16 hear --

17 THE COURT: I only want to address whether or not
18 all of your issues are pending in current petitions. You
19 filed your custody petition so you've got custody. That's
20 a valid issue before the Court.

21 MR. RUSSELL: Okay. Well, I -- I -- I appreciate
22 that and I'll try to attempt to confine my remarks to, you
23 know, as you say. I was attempting to answer your question
24 as best I could. With --

25 THE COURT: With respect to -- I just have

1 another question with respect to the Family Offense
2 petition, which was filed this morning. It looks to be the
3 same Family Offense petition that I heard yesterday. It --
4 it is not, as I said yesterday, it is not a Family Offense
5 petition. It is perhaps what you've said here relevant to
6 custody issues, but it is not a Family Offense petition
7 that is appropriate under the Family Court Act of New York
8 State.

9 MR. RUSSELL: Have you had --

10 THE COURT: I strongly encourage you to get an
11 attorney and to proceed with this in a legally appropriate
12 fashion. At this point, what you're doing is like
13 scattered gunshot and it's not organized and it's not
14 helpful to me as a judge to understand exactly what you're
15 trying to do in this case. In any event --

16 MR. RUSSELL: I --

17 THE COURT: -- I have said --

18 MR. RUSSELL: I -- it --

19 THE COURT: -- that I am issuing an order for a
20 forensic evaluation. I'm doing that today and --

21 MR. RUSSELL: I will not comply with that order,
22 Your Honor. We should go to trial. You're welcome to take
23 a negative inference.

24 THE COURT: Okay. And I will -- and I will do
25 that, Mr. Russell.

1 MR. RUSSELL: I -- I -- I suspect that you will
2 not after hearing the evidence, but you are certainly
3 welcome to do so and I appreciate you sharing with me that
4 you have that right.

5 THE COURT: Okay. So as far as any other issue
6 that we can discuss today, I think that my hands are tied
7 by virtue of the lack of an attorney for the child.

8 MR. RUSSELL: There is one, Your Honor, that you
9 can address today. The -- you were left with a -- when
10 Judge Humphrey recused himself, it had been following two
11 hearings on an access and Family Offense petition that he
12 heard. Tara was represented. Both Tara and her attorney
13 did not resp- -- did not show up. It was rescheduled.
14 They defaulted similarly on that second occasion.
15 (Inaudible) of -- of (inaudible) --

16 THE COURT: Wait. You're breaking up,
17 Mr. Russell.

18 MR. RUSSELL: I -- I -- I'm sorry for the -- for
19 the -- the new motions. I've -- I've actually had to file
20 orders attempting to get myself and my family protected
21 quite a few times because they had not been heard.
22 Humphrey, to his credit, did hear it -- attempt to, not
23 once but twice, and Mr. Weddle and Ms. Walsh did not show
24 up. They defaulted. And whereas I was denied access to my
25 daughter for over a year for a situation where I was not in

1 default. My attorney was present and that was a visitation
2 conference.

3 These were two hearings on the same issues that
4 you now have, you know, kind of find dumped in your lap
5 that should've been resolved prior to getting to you. I
6 apologize for that.

7 THE COURT: Wait. Are you saying he had a
8 hearing on these issues and didn't render a decision?

9 MR. RUSSELL: Correct. He had two hearings.
10 Because Ms. Walsh and Mr. Weddle did not show up for
11 either, I have been waiting for, you know, what I would
12 expect to be a fairly straightforward ruling.

13 That filing, Your Honor, is substantially similar
14 to what you have before you. It was filed upon the
15 expiration of the permanent Order of Protection I received
16 in San Francisco.

17 The request was that those specific terms be
18 extended in Westchester. It gave good reasons why. The
19 courts and the police had asked that Westchester take over
20 that jurisdiction and it talked about the -- the effect,
21 the absence of that protective order, was having on my
22 ability to see my daughter.

23 You know, having two hearings that Ms. Walsh
24 defaulted in should be more than sufficient to grant what
25 was frankly a very straightforward request of the Court.

1 MS. WALSH: Your Honor, just to --

2 MR. WEDDLE: Judge?

3 THE COURT: Okay. Let -- your attorney has had
4 his hand up. Mr. Weddle?

5 MR. WEDDLE: Yeah, Judge, first of all, I don't
6 know that I had been assigned to that matter.

7 Second of all, they were not hearings. I think
8 there was an appearance and I think there was a question as
9 to whether there was adequate service on Ms. Walsh.

10 Third of all, that -- that issue is still pending
11 before your Court. You, in fact, had issued a temporary
12 Order of Protection for Mr. Russell's benefit. As I told
13 you on our last appearance, the genesis of that Family
14 Offense petition was this alleged drugging. I do intend to
15 make a Motion to Dismiss, as I informed the Court on our
16 last appearance, because that matter has been addressed
17 squarely by the courts in California and res judicata full
18 faith credit does apply.

19 MR. RUSSELL: Mr. Weddle (inaudible) --

20 MR. WEDDLE: I'm still talking, Mr. Russell.

21 Excuse me.

22 THE COURT: Please let him finish.

23 MR. RUSSELL: I -- I apologize, but you, you
24 know, you're incorrect.

25 MR. WEDDLE: So that -- that matter is not dead.

1 It is still alive. I don't think that Judge Humphrey
2 would've issued a final order without at least a Notice of
3 Inquest being sent out, which I certainly never received.

4 MR. RUSSELL: He -- he did not.

5 MR. WEDDLE: Thank you, I'm finished now.

6 MR. RUSSELL: Yeah, I'm sorry. So he did not
7 send a final order. Other than that, what Mr. Russell
8 (sic) said -- what Mr. Weddle said is not accurate.
9 The -- the filing for protection and extension of the
10 permanent order in San Francisco was a little unique, a
11 little different, than a normal Family Offense petition.
12 He did not grant it on a temporary basis. Instead, he had
13 filed a hearing.

14 At that first hearing, Ms. Walsh and Mr. Weddle
15 did not show up and Mr. Humphrey did not -- Judge Humphrey
16 did not know that Tara was in the confidentiality program.
17 So he asked was someone served? No, someone wasn't served.
18 In the email correspondence following that first hearing,
19 the documents relating to Tara's confidentiality --

20 THE COURT: Okay, wait. Mr. Russell, are you
21 saying that you want to have open your Family Offense
22 petition against Ms. Walsh?

23 MR. RUSSELL: I had two hearings, Your Honor.
24 They defaulted. I'd like a ruling in my favor and --

25 THE COURT: When were those hearings?

1 MR. RUSSELL: They were the -- the only matter
2 before the Court just prior to you, so Judge -- Judge --
3 actually Judge Humphrey --

4 THE COURT: You need to give me a docket number
5 because of all the voluminous filings in this case, it's
6 not easy for me just to figure out what you're talking
7 about, which is why I say it is not helpful --

8 MR. RUSSELL: Your Honor, I don't have a copy of
9 the --

10 THE COURT: -- to keep filing the same things
11 over and over, Mr. Russell. Tell me a docket number and a
12 date.

13 MR. RUSSELL: Your Honor, the Court has refu- --
14 I'm sorry to talk over you, Your Honor. I'm just more
15 chuckling, but I have asked for a docket. Max has asked
16 for a docket. My attorneys in the upcoming battery case
17 have asked for a copy of the docket. My attorneys in the
18 RICO case have asked for a docket.

19 THE COURT: You're telling me you filed a
20 petition and she defaulted. I don't know what it means
21 that you've asked for a docket number. If you filed a
22 petition, what docket number is it?

23 MR. WEDDLE: I -- I could take a stab at that,
24 Judge.

25 THE COURT: Go ahead.

1 MR. WEDDLE: I think it's -- it could be 0-12635
2 and it's either dash 19 or dash 19/19C maybe.

3 THE COURT: 12635, I'm pulling up right now. It
4 looks like it's your client's petition.

5 MR. WEDDLE: That's -- Judge, the caption I'm
6 looking at has Mr. Russell as the petitioner.

7 THE COURT: The one in the court file is -- is
8 Ms. Walsh against Mr. Russell.

9 MR. WEDDLE: I don't know that, Judge. That's
10 the only one I have and it has Mr. Russell as the
11 petitioner.

12 MR. RUSSELL: Your Honor, I -- I will follow up,
13 but I have not been provided the docket. I -- I do not
14 know why. I've asked quite a few times.

15 THE COURT: When was it filed?

16 MR. WEDDLE: It was sworn to on February 23rd of
17 this year, Judge.

18 THE COURT: No, I'm asking Mr. Russell when he
19 filed his petition --

20 MR. RUSSELL: It -- it --

21 THE COURT: -- that supposedly there was -- there
22 was a hearing on.

23 MR. RUSSELL: It was filed pro se in early
24 February. I want to say there was the first hearing, the
25 first default, was on, it might have been, February 10th or

1 February 23rd. There was a subsequent --

2 THE COURT: Of what year, Mr. Russell?

3 MR. RUSSELL: This is of last year. This is just
4 prior -- just -- just prior -- I'm sorry, of this year,
5 just prior to you taking over the case.

6 THE COURT: Okay.

7 MR. RUSSELL: This was the last -- this is one of
8 the points that, you know, you had Humphrey acting really
9 as I described the situation with Horowitz. His -- the
10 sole matters before Humphrey were the Motion to Vacate,
11 which, you know, he had not taken up and this particular
12 order that, again to his credit, he had not one, but two
13 hearings.

14 And beyond that the only other matter that I'd
15 say that he took up was to give Ms. Walsh not one, but two,
16 Court-appointed attorneys though she does not qualify.

17 THE COURT: Okay. Again, you're saying many
18 different things at the same time, Mr. Russell, and I'm
19 having a hard time following you. I would suggest, because
20 I can't see this in the file, that you follow up with Judge
21 Humphrey's part and figure out exactly what -- you're
22 saying he had a hearing. Exactly what the hearing was and
23 whether he issued a decision and send it to me.

24 If your question is whether you still have a
25 Family Offense petition pending against Ms. Walsh? Is that

1 your question?

2 MR. RUSSELL: No. Well, my -- my --

3 THE COURT: I can't issue a decision on what --
4 on any hearing that Judge Humphrey had. You understand
5 that?

6 MR. RUSSELL: I -- I have a -- I have a specific
7 request for you just to start with. The -- the -- I've
8 been told because of my whistleblower status and the
9 sensitivity especially around --

10 THE COURT: Who told you? Let's start with that.
11 Somebody told you; who told you?

12 MR. RUSSELL: The -- my -- the attorney in my
13 battery case and --

14 THE COURT: And that's a California attorney?

15 MR. RUSSELL: -- contacted a clerk.

16 THE COURT: Okay. Mr. Russell?

17 MR. RUSSELL: Yes?

18 THE COURT: Are you talking about a California
19 attorney?

20 MR. RUSSELL: Yes, the attorney in my battery
21 case and --

22 THE COURT: So this is your attorney that you've
23 retained?

24 MR. RUSSELL: Correct.

25 THE COURT: And what is your attorney's name?

1 MR. RUSSELL: Joy Llaguno.

2 THE COURT: Spell that please.

3 MR. RUSSELL: It's L-l-a-g-a-u-n-o (sic).

4 THE COURT: Now she told you what?

5 MR. RUSSELL: That -- this actually -- there are
6 -- this happened three times and the script went exactly as
7 follows. Hi, I'd like a copy of my full docket please. Or
8 it was an attorney asking on my behalf. The clerk very
9 kindly said, yes, happy to get to that you. We'll get that
10 to you by end of day. Then a follow up after finding out
11 it was my case, no, I cannot give that to you.

12 THE COURT: Okay. So what does that have to do
13 with me? You're telling me that you wanted some
14 information on a California battery case and your attorney
15 couldn't get it?

16 MR. RUSSELL: You've -- and I just -- I
17 appreciate, Your Honor, I can hear you very well and -- and
18 I know this is frustrating, but -- but you -- you --

19 THE COURT: What I want to tell you, Mr. Russell,
20 is that you are spending time discussing issues that seem
21 like they should be not a priority to you. If you're
22 looking to get custody of your daughter and you're looking
23 to see your daughter and you're telling me about things
24 that happened in other courts, you must understand, you're
25 a smart guy, I don't have the authority to do anything over

1 a California case.

2 MR. RUSSELL: I -- I -- I -- you misunderstand my
3 point. You've asked twice during this hearing for
4 information that if I were prepared and had this -- the
5 docket in front of me. I could answer the questions for
6 you and I would've loved to have done that. I can't do
7 that because --

8 THE COURT: All right. Then we're not discussing
9 it. If you don't have the information to answer my
10 questions, we're not discussing it.

11 MR. RUSSELL: I -- I would like you to order your
12 court to provide it to me. I'm entitled to it and they
13 refuse.

14 THE COURT: To provide? I don't know what you're
15 asking me for, Mr. Russell. I would be happy to provide
16 you with whatever it is you're -- you're --

17 MR. RUSSELL: It's -- it's -- it's simply a copy
18 of the -- of the file, Your Honor. I am now representing
19 myself and I would like a copy of the file.

20 THE COURT: But we don't send copies of files.
21 How it works is you come to the courthouse. You sit in the
22 Clerk's Office and, under supervision, you can review the
23 court file. That's how it works. You can contact my part
24 when you're ready to come to New York and review the file
25 and we will happily show you the file. There is no sending

1 of the file. That, you can get from your attorney.

2 Whatever he has, whatever orders or copies of
3 petitions or copies of motions, he can certainly give to
4 you. Anything else that you think you don't have or you're
5 wondering about, you can review in the same way that any
6 other pro se litigant can review. By coming to the
7 courthouse and sitting in the Clerk's Office at the
8 computer and reviewing the documents. So I'm not -- I'm
9 not discussing that anymore.

10 Are you planning on coming to New York? Because
11 at some point this case is litigated in New York. You
12 can't do it by video.

13 MR. RUSSELL: I --

14 THE COURT: I'm doing all of my trials in person
15 right now.

16 MR. RUSSELL: Oh, I'm -- I'm looking forward to
17 the trial, Your Honor, and -- and -- and you will see, you
18 know, me in -- in the courtroom barring, you know, a
19 decision from you that that's not viable. When we can we
20 schedule that trial?

21 THE COURT: Well, I'm ordering the forensic. You
22 may not cooperate, but Ms. Walsh --

23 MR. RUSSELL: I'm not complying with that.

24 THE COURT: -- Ms. Walsh will have to cooperate
25 and once that is completed, we will schedule the trial.

1 MR. RUSSELL: Are you aware there have been five
2 forensics in this case, Your Honor?

3 THE COURT: I have not seen any completed
4 forensics, so I am unaware of what you mean by five
5 forensics. So tell me who did the forensics.

6 MR. RUSSELL: The one most immediate, let's start
7 with the one that Ms. Jackman was requesting be -- be
8 reinstated. So \$60,000 was spent with Dr. Paul Hymowitz.
9 Dr. Paul Hymowitz was -- had let the Court know that he was
10 ready to make a glowing review of myself. He felt, at that
11 point, I was also being denied access to Evie. But --

12 THE COURT: All right. Let me stop you right
13 there, Mr. Russell, because we -- I don't -- I haven't seen
14 what Dr. Hymowitz did, but I know that we discussed on, I
15 think it was, the last court date whether we could get an
16 update from Dr. Hymowitz. He had not completed the
17 evaluations is my understanding.

18 MR. RUSSELL: He -- Judge, one second --

19 THE COURT: So you might believe that he was
20 going to give you a --

21 MR. RUSSELL: I think --

22 THE COURT: -- glowing recommendation, but one
23 second.

24 MR. RUSSELL: That's incorrect.

25 MR. WEDDLE: Your Honor, that -- that --

1 THE COURT: He did not --

2 MR. RUSSELL: That's incorrect, Your Honor.

3 People have told you quite a bit of, I would say, jaundiced
4 items. In -- in his case, what he was not ready to do was
5 render a judgment on the safety of Mr. -- of Tara's
6 parents.

7 At that point in time, a -- quite a bit of
8 information had surfaced before him. He asked the Court
9 permission to make an adjudication on myself, but not yet
10 on the Walshes because --

11 THE COURT: Okay. And where did he do that,
12 Mr. Russell? Where did he do that? Because I'm unaware
13 and it would be very atypical --

14 MR. RUSSELL: It's terrible that you are --

15 THE COURT: -- of a forensic evaluator to do --
16 to make that kind of a request. But the bottom line is --

17 MR. RUSSELL: Are you -- are you accusing me of
18 lying, Your Honor?

19 THE COURT: -- that I can't do a trial without a
20 forensic evaluation.

21 MR. RUSSELL: Right.

22 THE COURT: We discussed whether Dr. Hymowitz
23 would complete the evaluations, as well as do an update
24 because anything that he did would have been stale. And I
25 believe that someone, I think it might've been Ms. Jackman,

1 looked into it. Dr. Hymowitz was not doing in-person
2 evaluations and I think he was way more expensive than
3 Dr. Verno. So I had indicated that I would order Dr. Verno
4 to do a new evaluation.

5 MR. RUSSELL: You -- you were deceived, Your
6 Honor, and I'll make sure the documents on this were -- are
7 given to you so that's -- that's clear. I -- I don't
8 (inaudible) --

9 THE COURT: But are you requesting that
10 Dr. Hymowitz complete the evaluation?

11 MR. RUSSELL: I -- I will -- I -- I will forward
12 you a motion in writing, Your Honor, that has my specific
13 requests as it relates to the past forensics.

14 THE COURT: Mr. Russell, I am not -- I do -- I'm
15 ordering you not to submit a motion on that issue. I'm
16 directing you to answer my question. I am ordering a
17 forensic evaluation. The issue was whether Dr. Hymowitz
18 would complete it including an update or whether we would
19 start with a new evaluation from Dr. Verno. My question is
20 what would you prefer? And you have just indicated that
21 you are not participating in any evaluation.

22 MR. RUSSELL: I -- I don't --

23 THE COURT: So what difference does it make?

24 MR. RUSSELL: It's -- I'm not sure if you think
25 I'm being rude, but I'm having a hard time answering your

1 question simply for having the space to do it. My request
2 that we made with Hymowitz is -- is previously on the
3 record. We requested that he both be allowed to issue a --
4 a report on what he had evaluated and that he also be given
5 time to review the allegations of Walsh abuse.

6 THE COURT: Okay, that's fine. Then that would
7 require him completing the evaluations, would it not?

8 MR. RUSSELL: In -- in -- in this case, because
9 Tara's accusations upon which even jurisdiction were based
10 were, you know, fairly particular and extreme items that
11 she's since recanted. And he had very little trouble
12 getting to the bottom --

13 THE COURT: Mr. Russell, stop it please.

14 MR. RUSSELL: I -- I don't know how --

15 THE COURT: I asked you a procedural question,
16 not a substantive question. I don't want to hear what
17 Dr. Hymowitz told you about allegations.

18 MR. RUSSELL: I -- I -- I will not --

19 THE COURT: I'm asking you --

20 MR. RUSSELL: I'll answer.

21 THE COURT: -- yes or no? Do you want --

22 MR. RUSSELL: We will not --

23 THE COURT: -- Dr. Hymowitz to complete the
24 evaluation?

25 MR. RUSSELL: We -- we will -- we will not

1 consent to any activity of any additional experts. Our
2 sole goal is to get to trial. You are welcome to take a
3 negative inference.

4 THE COURT: Okay.

5 MR. RUSSELL: We will oppose in any --

6 THE COURT: All right.

7 MR. RUSSELL: -- way, shape, or form any attempt
8 to do that.

9 THE COURT: So I'm issuing an order for Dr. Verno
10 to complete the evaluation. If you chose not to
11 participate, it's by the way contempt of a court order, Mr.
12 Russell. You understand what happens when someone refuses
13 to comply with a court order?

14 MR. RUSSELL: On this particular issue, I am well
15 apprised of the law, Your Honor, and you are a judge. You
16 have a very broad discretion; and I hope you'll use it, and
17 I hope you'll use it well.

18 THE COURT: You are not going to be permitted to
19 come into court and make allegations and arguments that
20 relate to issues that could've been addressed in an
21 evaluation without submitting to the evaluation.

22 MR. RUSSELL: Your Honor, are you aware of how
23 many health evaluations Ms. Walsh has skipped and refused
24 to participate in?

25 THE COURT: I -- I don't know that that is

1 relevant at this point. What is relevant at this point is
2 whether I can proceed with a custody trial, and in doing so
3 I need to have forensic evaluations. If she fails to
4 comply with my order for the forensic evaluation, I will
5 deal with her in the same manner I will deal with you.

6 So --

7 MR. RUSSELL: Your Honor, you have a forensic
8 evaluation on -- on the record. There were two forensics
9 ordered in this case.

10 THE COURT: I -- are you aware of that,
11 Mr. Weddle?

12 MR. WEDDLE: Judge, I --

13 THE COURT: I don't see any forensic evaluations.

14 MR. WEDDLE: No. No, there are none. There was
15 -- there was an order in November of 2018 for Dr. Hymowitz
16 and I believe that was begun, but not completed. I -- I --
17 well, I think Ms. Jackman told the Court why, being she was
18 here at that time. I was not. Ms. Jackman did reach out
19 to Dr. Hymowitz and, though his rates have gone up, he said
20 he is willing to update and complete the report if the
21 Court wants him to.

22 MR. RUSSELL: I think that Mr. Weddle is -- is
23 not correct. There -- the -- there was -- the forensic
24 paid by the parties was Hymowitz. The forensic appointed
25 by Gordon-Oliver on her own was a gentleman named Griffin.

1 The -- there was --

2 THE COURT: Well, Griffin is a substance abuse.
3 He doesn't do forensic mental health evaluations. He does
4 substance abuse evaluations and I'm aware of Dr. Griffin
5 and -- and --

6 MR. RUSSELL: He -- he was appointed by
7 Gordon-Oliver as a quote second forensic in the case. I
8 understand it's absurd. I'm simply stating the facts as
9 they are in the transcript.

10 We also, because there was a long -- a long
11 multiple-week evaluation by a forensic recommended by
12 Tara's primary care physician in San Francisco, we asked to
13 have that admitted and it was opposed on HIPAA grounds, so.

14 THE COURT: All right. Well, so, again, if you
15 had an attorney, Mr. Russell, you would know how to get
16 that evidence into court in a trial.

17 MR. RUSSELL: I -- I have multiple attorneys. I
18 am representing myself because --

19 THE COURT: I understand that, but you're --
20 again, you're telling me things that are not relevant at
21 this point and I -- I think we've -- we've gone as far as
22 we can go productively today without a new attorney for
23 your daughter. So the Court will have to find an attorney
24 who could represent Evie and I will assign that attorney.
25 I'm going to issue the order for the forensic evaluation by

1 Dr. Verno. If you fail to comply, or if you fail to
2 comply, Ms. Walsh, there will be appropriate sanctions. So
3 I would encourage you to -- to submit to the evaluations.

4 And, just so we're clear to wind up now today and
5 tie up all the loose ends, to the extent that you refiled
6 for the third time, the same Family Offense petition --

7 MR. RUSSELL: Per your request, Your Honor.
8 If -- given that you're -- you're not inclined to grant
9 that and you believe it's the same petition, can you issue
10 a final order on that in -- in writing on the Family
11 Offense petition from today?

12 THE COURT: I'm not issuing a final order in
13 writing, Mr. Russell. Order the transcript. I said
14 yesterday, I'm saying the same thing today, your Family
15 Offense petition --

16 MR. RUSSELL: I can't appeal it without
17 (inaudible) --

18 THE COURT: -- you filed it against -- against
19 John Does. You have -- it is longwinded.

20 MR. RUSSELL: There are unknown people at
21 (inaudible) house.

22 THE COURT: It is incomprehensible. It addresses
23 issues that relate --

24 MR. RUSSELL: I don't believe you've read it.

25 THE COURT: -- perhaps to custody, as I said.

1 MR. RUSSELL: It's not. Your Honor, it is -- it
2 is not long and incomprehensible. It is actually a -- per
3 a number of experts in this field, a properly formed
4 document. Ms. D'Ambrosia (ph), I believe, described it to
5 you incorrectly. It is in a separate --

6 THE COURT: I'm looking at it right now,
7 Mr. Russell.

8 MR. RUSSELL: Well, it's -- I -- I -- I'd give
9 you whatever time you like to -- to read it, but if you're
10 making a judgment on it, I can -- I cannot appeal it if I
11 do not have a -- a ruling from you. It would be
12 tremendously unfair on top of much other unfairness.

13 THE COURT: I have said, and now this will be the
14 third, fourth, fifth time I'm saying it, Mr. Russell. This
15 Family Offense petition is not an appropriate Family
16 Offense petition under the law of New York.

17 MR. RUSSELL: So please (inaudible) --

18 THE COURT: You raise issues in here that may be
19 very legitimate issues in the context of a custody case,
20 but they are not the appropriate mechanism a Family Offense
21 petition. And I'm not giving you legal advice. You had an
22 attorney. It seems like he just filed what you wanted him
23 to file without regard to the appropriateness of the
24 document.

25 MR. RUSSELL: I've had three attorneys.

1 THE COURT: But I --

2 MR. RUSSELL: He's the one that filed.

3 THE COURT: I am dismissing the Family Offense
4 petition. All of these allegations are appropriately
5 raised in the context of a custody case and they will be
6 addressed in that context. They are not being addressed in
7 the context of an application for a temporary Order of
8 Protection and my --

9 MR. RUSSELL: Can you issue that as a ruling
10 though, Your Honor? This is a separate matter.

11 THE COURT: It's an order. Send me the
12 transcript. I'll so order it.

13 MR. RUSSELL: Okay, all right, thank you. I
14 appreciate it.

15 MR. WEDDLE: Your Honor, may I ask a question
16 please?

17 THE COURT: Yes.

18 MR. WEDDLE: So you're dismissing Mr. Russell's
19 Family Offense petition. Are you vacating the TOP that was
20 issued in connection with that?

21 THE COURT: No, I did not issue a TOP. I'm
22 talking about Family Offense petitions of which you are
23 probably not even aware because they came in ex parte and
24 they were dismissed; one on July 28th, one series of
25 paperwork on July 28th; one series of paperwork that was

1 filed on August 26th, and then again the same or similar
2 set of papers that was filed just this morning. So you've
3 not seen them.

4 MR. WEDDLE: There is a temporary Order --

5 THE COURT: It would be the same process as
6 anyone who comes in to file for an Order of Protection and
7 then it gets denied.

8 MR. WEDDLE: Correct, but, Judge, there is a TOP
9 against my client presently.

10 THE COURT: Okay, wait, hold on one second.
11 Okay. That's an old one?

12 THE CLERK: Well, this is the original one right
13 here.

14 MR. RUSSELL: You granted a TOP, Your Honor, as
15 part of -- in the -- our first hearing. You -- as part of
16 the cleanup of the other various things you had in front of
17 you, you know, you issued -- the -- the Motion to Vacate
18 was granted and you issued temporary custody to Tara. You
19 created an interim visitation order and you created
20 language around two Orders of Protection. I am since --
21 you know, I'm fine with or without them.

22 The Order of Protection, Mr. Weddle, was against
23 Steve (ph) and Maura (ph) Walsh for the recent abuse of my
24 daughter and their failure to let her see her family. It
25 was an appropriately, in my belief, filed motion to protect

1 my daughter in the context of recent and immediate threat
2 to her.

3 THE COURT: I do -- just before -- before we go
4 on, Mr. Russell, the order -- the Family Offense petition,
5 sorry, that you filed that was dismissed, I guess by
6 Judge Morales Horowitz, was reinstated. I reinstated that.

7 So there is a Family Offense petition pending
8 filed by you against Ms. Walsh and I have the docket
9 number. That was the zero -- it's 0-03599 of '20 and there
10 is actually a current Order of Protection that I signed on
11 July 23rd requiring that Ms. Walsh stay away from you, your
12 home, your place of employment, that she have no
13 communication with you, and that she not assault, stalk,
14 harass, threaten, intimidate, or commit any criminal
15 offense against you.

16 MR. RUSSELL: Is that the same -- would that be
17 the same docket number as the referenced Humphrey matter
18 where there were the two defaults? Or is that a new -- a
19 new number that --

20 THE COURT: This -- this was filed in June of
21 2020. It looks like it was heard by the duty judge on that
22 date and then it went to Judge Morales Horowitz and she
23 dismissed it.

24 MR. RUSSELL: (Inaudible), Your Honor.

25 MR. WEDDLE: Your Honor?

1 THE COURT: For failure to appear on October 20th
2 of 2020. Yes?

3 MR. WEDDLE: So that's been reinstated. That's
4 the one I have to move to dismiss. I don't have a copy of
5 that petition with that docket number on it.

6 THE COURT: Okay.

7 MR. WEDDLE: Can I get --

8 THE COURT: Can you send that, Eric (ph), please?
9 We'll send that.

10 MR. WEDDLE: Thank you. And, Judge, also as a
11 housekeeping matter, I've received the Motion for Case
12 Schedule and Clarification of Issues Before the Court. I
13 have not received the other motion that Mr. Russell has
14 filed.

15 MR. RUSSELL: There should be three that --
16 there's an abuse motion that was, you know, dismissed.
17 There is a request for -- for your dismissal and for
18 financial damages as it relates to Ms. Walsh
19 misrepresenting her wealth and her family's wealth.

20 And there was an attempt -- I did spend a lot of
21 time with my attorneys going through, you know, as
22 admittedly this very long and complicated case in order to
23 attempt to reduce the number of issues before us and the --
24 the instantiation of that is in the third motion, which
25 talks about the exact language in the Motion to Vacate and

1 what it effects exactly. And the net effect of it should
2 have been, was intended to be, something to make our lives
3 much, much simpler.

4 MR. WEDDLE: Judge, when we started this
5 conference, and I appreciate you taking the time, I thought
6 I knew what was going on and now procedurally I'm lost. As
7 far as I know, each party has a Temporary Order of
8 Protection against the other. Each --

9 THE COURT: That's correct. One second,
10 Mr. Weddle, because I was just going to point that out.
11 That is correct.

12 Ms. Walsh filed a Family Offense petition, docket
13 0-12635 of '19. That Temporary Order of Protection on
14 behalf of her against Mr. Russell was continued and I
15 signed, also on July 23rd, the Order of Protection that Mr.
16 Russell stay away from Ms. Walsh, her home, her place of
17 employment, that he have no communication with her, and
18 that he not assault, stalk, harass, threaten, intimidate,
19 or commit any criminal offense against her.

20 So I have, at this point, the two Family Offense
21 petitions by each party against the other and the two
22 custody petitions, as well as a number of other papers that
23 Mr. Russell continuously files, which in my mind --

24 MR. RUSSELL: I -- I --

25 THE COURT: -- don't seem to serve much purpose

1 other than to confuse the matters because we have just sat
2 here for over an hour discussing issues that don't even
3 relate to the merits of this case. And if your real goal
4 is to figure out how you can have your daughter, some
5 access to your daughter or custody of your daughter, then
6 we would be talking about those issues and how to proceed
7 to a quick hearing and --

8 MR. RUSSELL: I -- I would -- I would --

9 MR. WEDDLE: I'm just sort of --

10 MR. RUSSELL: This is -- this is indeed my -- my
11 -- my request. But, Your Honor, may I ask a question about
12 Mr. Weddle --

13 THE COURT: But you keep going down these paths,
14 Mr. Russell, that are irrelevant.

15 MR. RUSSELL: I'd like a follow -- ask a
16 follow-up.

17 THE COURT: Talking to me about a California --

18 MR. RUSSELL: I'd like to ask a follow-up
19 question, please.

20 THE COURT: -- case from 2018 is not productive
21 --

22 MR. RUSSELL: I'd like to ask a follow-up
23 question (inaudible).

24 THE COURT: -- with respect to an issue of
25 custody in 2021.

1 MR. WEDDLE: Judge, can I continue my procedural?

2 MR. RUSSELL: (Inaudible) -- I --

3 THE COURT: Go ahead.

4 MR. RUSSELL: I just have a question about what
5 Mr. Weddle said. So you gave a docket number for the
6 temporary restraining order. When is the hearing scheduled
7 for Ms. Walsh's temporary order against me?

8 MR. WEDDLE: It's not --

9 THE COURT: I've not scheduled that hearing.

10 MR. RUSSELL: Why has it not been scheduled?

11 THE COURT: Why? Because every time we come into
12 court, I'm dealing with -- with new petitions that you've
13 filed. We've just spent this whole morning talking about
14 new petitions and revisiting the issue of what old
15 petitions are pending. This -- I'm not ready to do a trial
16 in this case. Nobody even seems to know exactly what's
17 pending. You don't even seem to know exactly what's
18 pending.

19 MR. RUSSELL: A TOP -- a hearing on the TOP you
20 granted Ms. Walsh was my question, Your Honor.

21 THE COURT: And there'll be a hearing on that.
22 And I'm ordering the forensic evaluation. At this point,
23 you both have Temporary Orders of Protection, so you're
24 both protected and we'll have a hearing at an appropriate
25 time.

1 MR. RUSSELL: I -- I'd like to see a hearing or
2 that renewed as is required. A permanent Temporary Order
3 of Protection does not give me a chance to face my accuser.
4 It -- it puts an Order of Protection in place.

5 THE COURT: Well, exactly, Mr. Russell. You're
6 both in the same position with respect to Temporary Orders
7 of Protection that are full stay-aways.

8 MR. RUSSELL: I -- I --

9 THE COURT: Which, by the way, are only on behalf
10 of the two of you. There's no Order of Protection that --
11 that involves your daughter. Mr. Weddle?

12 MR. WEDDLE: Yes, Judge, just procedurally again.
13 So we had these two -- two custody -- two Family Offense
14 petitions and now I have three motions I need to respond
15 to; have I got that right?

16 THE COURT: How many motions do you have pending,
17 Mr. Russell?

18 MR. RUSSELL: The Family Offense petition you
19 dismissed today, so I believe it makes either no response
20 if --

21 THE COURT: That's not a motion, Mr. Russell.

22 MR. RUSSELL: Well, I -- I -- the number three
23 that Mr. Weddle used, he was including that. The -- there
24 was a second motion that relates to the appropriateness of
25 his appointment, as well as fees relating to Jennifer

1 Jackman. I believe that he should respond --

2 MR. WEDDLE: But, no, well -- okay. That's --
3 that's one motion. What is the second motion? I don't --
4 I -- I can't argue the merits of these things. I just want
5 to know what they are.

6 MR. RUSSELL: Would you like to know all three
7 including what was dismissed or just the two --

8 MR. WEDDLE: No, no, no, just what I have to deal
9 with. The Motion for Case Scheduling, I got. The motion
10 to have me fired, I got. Is there anything else?

11 MR. RUSSELL: The -- the -- there was a motion
12 relating to abuse that the judge ruled was dismissed and --
13 and not appropriate. There was a --

14 THE COURT: No, that's not a motion, Mr. Russell.
15 That was a petition. Again, another reason why --

16 MR. RUSSELL: I --

17 THE COURT: -- you should be retaining counsel.
18 I don't -- I don't understand why you insist on proceeding
19 pro se because you are going to be hurt by representing
20 yourself.

21 MR. RUSSELL: You are making a --

22 THE COURT: Do you have any legal training? Do
23 you have legal training?

24 MR. RUSSELL: You're making a --

25 THE COURT: You may have legitimate information

1 to get before the Court. You may have --

2 MR. RUSSELL: I have a right to represent myself,
3 Your Honor, and I intend to continue --

4 THE COURT: What's that?

5 MR. RUSSELL: I have a right to represent myself.
6 I intend to --

7 THE COURT: Of course you do, and I am required
8 by New York state law to advise you of the foolishness of
9 that.

10 MR. RUSSELL: I've -- I've heard --

11 THE COURT: And you need to understand and I am
12 required by law to tell you repeatedly -- repeatedly how
13 harmful --

14 MR. RUSSELL: You're not required to say it
15 repeatedly.

16 THE COURT: -- it is for anyone to represent
17 themselves. You may choose to do it. You may have a lot
18 of information that you may want to present.

19 MR. RUSSELL: Yeah.

20 THE COURT: You say you want to present
21 Ms. Walsh's mental health records. You don't know how to
22 get those before me in a legally appropriate way, so I may
23 never ever take a look at them because you're not doing it
24 in a legally appropriate way. Do you understand that?

25 MR. RUSSELL: I believe that I -- everything I've

1 done has been in a legally appropriate way.

2 THE COURT: Well, I'm telling you --

3 MR. RUSSELL: And you don't.

4 THE COURT: -- everything you have done is not.
5 And who's the judge in this matter, me or you, Mr. Russell?

6 MR. RUSSELL: You, and you have very broad
7 discretion in this matter, Your Honor. I have a very high
8 (inaudible) --

9 THE COURT: This Court is to abide by the rules
10 of evidence. I don't have broad --

11 MR. RUSSELL: I -- I certainly will --

12 THE COURT: -- discretion with respect to the
13 rules of evidence, Mr. Russell.

14 MR. RUSSELL: I don't think I've presented any
15 evidence at this point. I've -- I've -- and Mr. Weddle's
16 question was about three motions. One is, Mr. Weddle, is
17 not a motion. It's a petition, and the judge isn't
18 considering it. It was dismissed. I will be getting an
19 order based on the transcript. The other two, I don't
20 believe she has made a comment on.

21 MR. WEDDLE: Good, and I'll respond to whatever
22 I'm served with.

23 MR. RUSSELL: You've been served, Mr. Weddle,
24 under the --

25 MR. WEDDLE: No.

1 THE COURT: You accepted. I think you said you
2 did receive those motions. Didn't we discuss that at the
3 very first?

4 MR. WEDDLE: I -- I -- I received the Motion for
5 Case Schedule and Clarification of Issues Before the Court.
6 I will accept service of the motion to have me relieved as
7 well, but I have not yet been served with it.

8 MR. RUSSELL: How would you like --

9 THE COURT: The Motion for Inquiry into Walsh's
10 Financial Condition and Termination of Appointed Counsel
11 Based on Alleged Financial Hardship. That's the caption.

12 MR. WEDDLE: That's right, Judge. That one.
13 That's the one I don't have.

14 MR. RUSSELL: How would you -- under the
15 confidentiality order, it's -- I don't believe it's been
16 amended to specify --

17 MR. WEDDLE: No, no. No. She's represented by
18 counsel. Service on counsel is good service. You don't
19 have to serve her personally.

20 MR. RUSSELL: Okay. You will be served with that
21 today.

22 THE COURT: Okay. Mr. Russell?

23 MR. WEDDLE: And, for the record, Judge?

24 THE COURT: Yes?

25 MR. WEDDLE: Just -- just to make sure I've got

1 this correctly. It's Bernard Street in San Francisco. Is
2 it B-e-r-n-a-r-d?

3 MR. RUSSELL: Indeed.

4 MR. WEDDLE: Okay, San Fran. And what's the zip?

5 MR. RUSSELL: It's 94109.

6 MR. WEDDLE: 109, because I need to serve you
7 with anything I submit to the Court. I can't submit
8 something to the Court without sending it to you as well.
9 So I will --

10 MR. RUSSELL: That's correct.

11 MR. WEDDLE: I will use that address for service.

12 THE COURT: So --

13 MS. WALSH: Can I just note -- just fast because
14 I don't want Chris to waste his time. Mr. Russell has used
15 that address for the civil court proceedings and he's been
16 attempted to be served there and they've said that he
17 doesn't -- that's not an accurate address for him, that he
18 doesn't reside there.

19 MR. WEDDLE: But that's --

20 MS. WALSH: So I just don't want --

21 MR. WEDDLE: -- that's -- that's okay. It's the
22 address that I've been given for service.

23 MS. WALSH: Okay.

24 MR. WEDDLE: This is the address I will use.

25 MS. WALSH: Okay.

1 THE COURT: So in a case --

2 MR. RUSSELL: Did you have something you need to
3 serve to me?

4 THE COURT: What's that?

5 MR. RUSSELL: I just asked Mr. Weddle if he had
6 something he needed to serve me?

7 MR. WEDDLE: Well, when I reply to these motions,
8 I will have to serve you with my opposition.

9 MR. RUSSELL: All right. Let's -- you know,
10 because of the fires, it's -- you know, we're -- we're --
11 we're not in that apartment right now, so you can
12 coordinate with me and I -- and I'll be happy to take your
13 responses.

14 MR. WEDDLE: Well, no, I -- Mr. Russell --

15 THE COURT: So where are you staying,
16 Mr. Russell?

17 MR. RUSSELL: A hotel outside of San Francisco
18 until the fires calm down. They seem to be calming down
19 now, at least in that area.

20 THE COURT: Is that where you are now?

21 MR. RUSSELL: I'm -- yes, an Airbnb is where I'm
22 at right now.

23 THE COURT: Okay.

24 MR. WEDDLE: Mr. Russell, my problem is I'm --
25 I'm -- the rules of procedure are fairly formal and so I

1 need an address for service. Should I use this address or
2 should I use something else?

3 MR. RUSSELL: You -- you can -- you can use that
4 address. I assume that I can accept service over email and
5 I'll receive a secondary copy of that over email as well.

6 THE COURT: If you're --

7 MR. WEDDLE: No, then, I'll --

8 THE COURT: If you're agreeing to accept service
9 over email --

10 MR. WEDDLE: -- I'll serve --

11 THE COURT: -- it's on the record. Mr. Weddle,
12 send it to him by email and you respond, Mr. Russell, that
13 you've received it and you accept service.

14 MR. RUSSELL: Of course, Your Honor.

15 MR. WEDDLE: Very well, Judge.

16 THE COURT: So I do, before we adjourn and we'll
17 pick a date, just want to explain to you that -- that you
18 do have the right to have an attorney represent you with
19 respect to this custody petition. And you also do have the
20 right to waive your right to counsel and to represent
21 yourself.

22 The Court is required, as I said under New York
23 law, to make sure that a pro se litigant understands the
24 impact of that. I am required to make a searching inquiry
25 to determine that your decision to represent yourself is

1 made knowingly, intelligently, and voluntarily. Do you
2 understand that?

3 MR. RUSSELL: Uh-huh. You suspect (inaudible).

4 THE COURT: Okay. If you chose to represent
5 yourself today, you can retain counsel at another time. I
6 don't think anyone has ever asserted that you're entitled
7 to a Court-appointed attorney, but if you are indigent, you
8 have the right to ask for a Court-appointed attorney. Do
9 you understand that?

10 MR. RUSSELL: What is the standard for having a
11 Court-appointed attorney?

12 THE COURT: Well, it's -- it's indigency
13 basically.

14 MR. RUSSELL: Will you -- I'm just -- I assume
15 there's a legal definition. I would --

16 THE COURT: You know what? If you submit -- if
17 you think that you would qualify, you submit your paperwork
18 and the Court will make a determination. If you chose to
19 represent yourself and act as your own attorney and the
20 case goes to trial, you have the responsibility to issue
21 subpoenas, to present testimonial and documentary evidence,
22 to make objections, to answer objections to inadmissible
23 testimony or documentary evidence when there is a legal
24 basis to do so. Do you understand that?

25 MR. RUSSELL: I will have an attorney for the

1 trial, Your Honor.

2 THE COURT: Okay. But I'm just --

3 MR. RUSSELL: I -- I -- I do understand that, but
4 I will have an attorney for the trial.

5 THE COURT: And we did discuss the fact that
6 you're looking to get in certain evidence and that it needs
7 to be done in a legally appropriate manner under New York
8 law. You understand that?

9 MR. RUSSELL: I -- I do, Your Honor. I have an
10 attorney --

11 THE COURT: If you continue to represent
12 yourself, you would be responsible for questioning and
13 cross-examining witnesses, including experts, just as an
14 attorney would do. Do you understand that?

15 MR. RUSSELL: I would look forward to it, Your
16 Honor.

17 THE COURT: So listen carefully to the next
18 series of questions that I'm going to ask you concerning
19 your request to represent yourself. How old are you,
20 Mr. Russell?

21 MR. RUSSELL: I'm 46 years old.

22 THE COURT: What's your level of education?

23 MR. RUSSELL: I received a BA in Economics from
24 Stanford University.

25 THE COURT: Okay. And do you fully understand

1 English?

2 MR. RUSSELL: It's my first language and I -- I
3 believe so.

4 THE COURT: Can you tell me if you have recently
5 taken or are now taking any medication that would interfere
6 with your ability to understand what is happening in court?

7 MR. RUSSELL: Not to my knowledge, Your Honor.

8 THE COURT: Do you have or have you had any
9 mental or physical condition that would impair your ability
10 to follow what is happening in court?

11 MR. RUSSELL: No.

12 THE COURT: Have you had sufficient time to
13 reflect on representing yourself?

14 MR. RUSSELL: I have, Your Honor.

15 THE COURT: Okay. And what is your previous
16 exposure to legal proceedings? I'm going to ask you that
17 question with respect to New York because I understand
18 there's a lot of stuff pending in California, but New York
19 has different standards.

20 MR. RUSSELL: My litigation in New York has
21 included a -- corporate suits. With respect to the family
22 member, the primary New York litigation has been relating
23 to enforcement actions against the Walsh family for evading
24 testimony and deposition.

25 THE COURT: So did you represent yourself for

1 those proceedings or you had counsel?

2 MR. RUSSELL: No, Your Honor, the individual who
3 -- who will almost certainly be representing me at trial
4 represented me in those. So --

5 THE COURT: Here -- here in New York,
6 Mr. Russell?

7 MR. RUSSELL: Correct. He is licensed and -- and
8 licensed through the Bar. His -- he's also -- as you know,
9 there -- there's an open FBI investigation in a criminal
10 matter.

11 THE COURT: No, I don't know that, Mr. Russell.

12 MR. RUSSELL: How -- well --

13 THE COURT: And I will not be able to know that
14 at trial unless it is presented to me in a legally
15 appropriate fashion. Is this attorney familiar with family
16 law?

17 MR. RUSSELL: Indeed. He's -- he represented me
18 at the beginning of this case in Westchester Family Court
19 before Judge Gordon-Oliver and, you know, your -- if Your
20 Honor has any objections to -- to him, Max Difabio can also
21 be retained for the trial.

22 THE COURT: It's not for the Court to decide who
23 you should retain. And you've had a lot of exposure to
24 legal proceedings in California with counsel, Mr. Russell?

25 MR. RUSSELL: I will say they are very different

1 than Westchester Family Court, but in the course of, you
2 know, 30 years of business, I am -- I've had quite a bit of
3 exposure, as well as with the federal RICO case against the
4 defendants, you know, I now have exposure of federal
5 statutes and RICO statutes.

6 THE COURT: But are you familiar with the civil
7 practice law and rules and the rules of evidence in New
8 York?

9 MR. RUSSELL: In the context as would be
10 necessary for trial?

11 THE COURT: Yes.

12 MR. RUSSELL: I -- I won't be representing myself
13 at trial, Your Honor. I'm --

14 THE COURT: So do you think it might be helpful
15 for any attorney who does represent you at trial to be
16 present during all of these pretrial proceedings to get a
17 sense of what's happening?

18 MR. RUSSELL: I -- I -- I do not for one reason
19 and, you know, given sort of the nature of the
20 conversations I won't go into any of it. But you have been
21 told a number of things that are false by individuals
22 around you and who have now recused themselves.

23 And I -- my hope is that in addition to, you
24 know, if you can help me be responsive and not be off topic
25 and I'm certainly amenable to all advice and input from

1 you. But one of my goals is to correct those
2 misperceptions that have been given you.

3 And this is -- it's been three years, Your Honor,
4 and I know you feel like this is -- this has been a
5 difficult session and perhaps we didn't make the exact
6 progress you wanted to make, but this is the first --

7 THE COURT: What I feel like, Mr. Russell, is
8 that you have an agenda, that you want to make certain
9 statements, and that you're doing that at the expense of
10 what I think are the actual substantive relative issues in
11 this case. So I'm going to continue to ask these questions
12 that I'm required to ask of you and we'll continue.

13 MR. RUSSELL: Okay.

14 THE COURT: You understand that some areas of law
15 are very complicated and that even not a lawyer should
16 represent himself or herself in a court proceeding?

17 MR. RUSSELL: I -- I -- I will repeat again for
18 the record that at trial I will be represented. This --

19 THE COURT: That's fine, Mr. Russell. You're
20 here unrepresented now. So I'm asking you these questions.

21 MR. RUSSELL: I -- I -- I -- I am, but these --
22 these conferences are not a trial.

23 THE COURT: Do you understand that what you're
24 saying now and at any conference is on the record and that
25 some of the things that you say could possibly be used by

1 Mr. Weddle against you in a future trial?

2 MR. RUSSELL: Yeah, in --

3 THE COURT: And not in a criminal sense, but --
4 but you seem to think that this is an unimportant process,
5 but it's all being recorded and it may come back --

6 MR. RUSSELL: I -- I -- Your Honor, I -- first of
7 all, I -- I -- that statement is untrue and inappropriate.
8 I came to this hearing with three well thought out, well
9 researched, well intended motions, petitions. They have
10 been, for a variety of reasons -- you don't believe them to
11 be something that should be top of mind, but to think that
12 I have been casual with any of this? I have been to
13 Chappaqua over three years. I have spent no less than a
14 year in that city having 16 visits with five different
15 supervisors and I am continually greeted with individual --

16 THE COURT: Okay, Mr. Russell, those are the
17 merits.

18 MR. RUSSELL: -- who do not know --

19 THE COURT: I don't want to hear merits. I'm
20 asking you the questions that I am required to ask you
21 before --

22 MR. RUSSELL: It was not a merit conversation,
23 Your Honor. It was a statement that you --

24 THE COURT: Do you understand --

25 MR. RUSSELL: -- do not know the case, neither

1 does Mr. Weddle.

2 THE COURT: Have you ever heard the expression he
3 who represents himself has a fool for a client?

4 MR. RUSSELL: Indeed, yeah.

5 THE COURT: It's actually on my list of questions
6 to ask.

7 MR. RUSSELL: Is -- is that really? That's
8 funny.

9 THE COURT: It is.

10 MR. RUSSELL: Is that a personal --

11 THE COURT: Do you understand -- do you
12 understand that you may be required to prepare and issue
13 your own subpoenas for the production of witnesses and
14 documents for trial?

15 MR. RUSSELL: I -- I -- I will not be
16 representing myself at trial.

17 THE COURT: Okay. Do you realize that you would
18 have to make your own opening and closing statements if you
19 choose to do so?

20 MR. RUSSELL: I will not be representing myself
21 at trial.

22 THE COURT: Do you understand that you will be
23 expected to present direct evidence and explore the
24 testimony of opposing witnesses on cross-examination?

25 MR. RUSSELL: So, I'm just going to answer yes as

1 opposed to repeating what I've just been repeating, but,
2 yes, I -- I do know that and --

3 THE COURT: Do you understand that you'll be
4 expected to make appropriate objections to the testimony or
5 documents of the opposing side when there's a legal basis
6 to do so?

7 MR. RUSSELL: Of course, I -- I know that.

8 THE COURT: Do you realize -- and this is very
9 important because this seems to me to be one of your
10 biggest risks.

11 MR. RUSSELL: Uh-huh?

12 THE COURT: Do you realize that you risk not
13 being able to introduce evidence because you are not
14 familiar with the rules of evidence?

15 MR. RUSSELL: Are you speaking about at trial?

16 THE COURT: Yes.

17 MR. RUSSELL: I will not be representing myself
18 at trial.

19 THE COURT: Do you understand that you may be
20 expected to produce and cross-examine expert witnesses if
21 called for in the context of the case?

22 MR. RUSSELL: I -- I -- I do, and I will not be
23 representing myself at trial.

24 THE COURT: Do you understand that you risk not
25 being able to understand legal terms that are used in these

1 legal proceedings?

2 MR. RUSSELL: Like indigent? Yes, I -- I
3 understand. I do not understand the definition of that
4 word, but I will get out Black's Law Dictionary and attempt
5 to find out.

6 THE COURT: Do you understand that you will be
7 held to the same legal standards as an attorney despite
8 your lack of a legal education and that, therefore, you
9 risk losing your case or your defense due to a lack of
10 legal knowledge?

11 MR. RUSSELL: I -- I -- I do know that, Your
12 Honor, but I would -- I would ask in the time between now
13 and the trial that pro se defendants are often afforded
14 both leeway and some -- a modicum of interaction and help
15 so as to not derail things with their inexperience. Is
16 that something that you will help --

17 THE COURT: No. Do you understand that you will
18 receive no advantage or assistance from the Court, as this
19 Court is the impartial arbiter of the dispute in this case
20 and that the Court is not able to assist you in these
21 proceedings and that no one is going to go easy on you
22 because you are representing yourself? Do you understand
23 all of that, Mr. Russell?

24 MR. RUSSELL: I -- I do now.

25 THE COURT: Do you understand that you will be

1 expected to conduct yourself appropriately in the
2 courtroom?

3 MR. RUSSELL: Of course.

4 THE COURT: Have you been coerced or threatened
5 or in any way influenced to represent yourself?

6 MR. RUSSELL: To represent myself?

7 THE COURT: Yes.

8 MR. RUSSELL: No.

9 THE COURT: Are you fully familiar with the
10 allegations against you in this case and are you familiar
11 with the statutory and case law that may be applicable to
12 those allegations?

13 MR. RUSSELL: The allegations were dismissed by
14 Judge Horowitz on October 19th and withdrawn by Tara and
15 dismissed with prejudice in San Francisco. There are no
16 allegations in this case. You're proceeding under a
17 mistake.

18 THE COURT: Are you aware that many times people
19 who represent themselves at trial are unsuccessful?

20 MR. RUSSELL: I -- I -- I -- almost two to one I
21 would -- I would think that they're unsuccessful, but, yes,
22 I am aware of the track record of pro se litigants.

23 THE COURT: And your mother's here today too?

24 MR. RUSSELL: Correct.

25 THE COURT: Ms. Russell, by yourself?

1 MS. RUSSELL: May I just say one thing?

2 THE COURT: Yes.

3 MS. RUSSELL: If I get in trouble because I don't
4 know. I just wish you would get this custody trial set up
5 so -- because it needs to be done. I miss Evie. I love
6 Evie. We have fun and when I see Evie, Stephen should be
7 allowed to see her with me. She likes him. She just
8 blossoms when he talks to her and this is all so ridiculous
9 and you see that these two -- I mean, I -- I can tell you
10 plenty if I'm at trial. I won't say anything now. But I'm
11 -- I'm just telling you we need to get Evie seeing both her
12 parents; and if Tara is a loving mother, she'll allow it.
13 That's all I want to say.

14 THE COURT: Well, there's always -- there's
15 always a possibility you could try to resolve this matter
16 between yourselves, but I am required by law and, again, if
17 you were an attorney you would understand this. I am
18 ordering -- I have to order forensic evaluations in this
19 case.

20 MS. RUSSELL: That's fine.

21 THE COURT: The Appellate Division prefers that
22 there be forensic evaluations in these types of disputes.

23 MR. RUSSELL: Your Honor, could there be
24 visitations before the forensic evaluations? Is my mother
25 going to need a forensic evaluation?

1 THE COURT: No, she's -- she's not, but she will
2 most likely be a collateral meaning that any evaluator
3 would want to speak to her for sure.

4 MR. RUSSELL: What is the basis that my mother
5 lost your order --

6 THE COURT: She wasn't in court.

7 MR. RUSSELL: Huh?

8 THE COURT: She wasn't in court.

9 MS. RUSSELL: Your Honor?

10 MR. RUSSELL: You ordered it prior to court.

11 MS. RUSSELL: I finally got my computer set up
12 for this yesterday, and I know when I called before, I was
13 off -- I had to get off of the expressway. I was driving
14 up there and I couldn't get through and then they said they
15 didn't want me when I called that phone number on the
16 phone. So, anyway, but I'll stop talking.

17 THE COURT: Yeah. Yeah, so that --

18 MR. RUSSELL: Let me --

19 MS. RUSSELL: But just try to get this so they
20 can get custody.

21 THE COURT: That's -- that was an Order to Show
22 Cause. I'm looking to pull that up now. And when we had
23 the last court proceeding, which was --

24 MR. RUSSELL: In this --

25 THE COURT: -- with everybody present, which was

1 July 23rd. Mr. Difabio said that Mr. Russell was not
2 present because he was experiencing symptoms from COVID,
3 and that you, Ms. Russell, would not comfortable appearing
4 without your son. That's what was said on the record.

5 MR. RUSSELL: Your Honor, the -- the --

6 THE COURT: So I did grant interim relief in the
7 Order to Show Cause, but nobody was here to address whether
8 or not that would be continued. And we've just spent the
9 whole morning talking about things, as I said, that do not
10 address the merits of this case.

11 MR. RUSSELL: Your Honor, may I speak to the
12 merits just briefly because it is fairly straightforward?
13 Mr. Weddle --

14 MR. WEDDLE: Judge? I'm -- I'm sorry, Mr. --
15 Mr. Russell, I'm doing to you what I asked you not to do to
16 me and I am interrupting you, but I'm --

17 MR. RUSSELL: It's -- it's okay.

18 MR. WEDDLE: -- and I apologize.

19 MR. RUSSELL: Go ahead.

20 MR. WEDDLE: With -- without an AFC being
21 present, Judge, I -- I do not think that argument on the
22 substantive issues of custody and visitation is
23 appropriate. We need to be able to hear from the child.

24 MR. RUSSELL: I -- I -- I'm not going to argue
25 substantive issues.

1 THE COURT: That's -- that's correct. When --
2 when -- when judges are reassigned or attorneys are
3 reassigned, it delays the case and that's unfortunate.
4 It's unfortunate for Evie because I'm sure she would love
5 to have a relationship with -- with her parents.

6 MR. RUSSELL: Your Honor, my objection doesn't
7 relate to what Mr. Weddle says.

8 THE COURT: All right. I'm going to give you a
9 date --

10 MR. RUSSELL: Did you hear me, Your Honor?

11 THE COURT: -- for a conference.

12 MR. RUSSELL: I had an objection. I had an
13 objection, but it's not based on what you and Mr. Weddle
14 agreed. My objection is simply this. That Mr. Weddle felt
15 that the letter written by my mother was false and this was
16 the basis of his motion and you responded prior to trial
17 and stopped visits. And it is also true that you did not
18 have the opportunity to -- to hear her.

19 THE COURT: That's correct.

20 MR. RUSSELL: The issue of whether or not my
21 mother is here, that document was sworn and signed and
22 notarized. Mr. Weddle made that accusation baselessly
23 using a draft document that he inappropriately shared from
24 a settlement discussion.

25 So we do not need to have an AFC or blah, blah,

1 blah to know that the document Mr. Weddle shared with you
2 was not my mother's final letter, that my mother did indeed
3 sign and notarize that letter, and there is zero reason to
4 stop. It's purely punitive in my opinion to do so.

5 It is not in Evie's best interest regardless, and
6 an AFC is not required to adjudicate on that matter. That
7 is a procedural matter that -- that you will decide, you
8 know, solely, you know, based on the obvious facts of it.

9 THE COURT: All right. Let's pick a date.
10 September 24th in the afternoon?

11 MR. RUSSELL: For -- for what?

12 THE COURT: That's for a conference. So we'll
13 have a new AFC present. I told you today I'm issuing the
14 order for the forensic evaluation. I'm continuing both
15 Temporary Orders of Protection with the same --

16 MR. RUSSELL: I won't be present for any more
17 conferences.

18 THE COURT: -- under the same conditions. I'm
19 sorry? I'm didn't hear you, Mr. Russell.

20 MR. RUSSELL: I won't be present at any further
21 conferences. And you're welcome to make a ruling and take
22 negative inference for that. I will be present with an
23 attorney at trial. I don't speak for Ms. Russell.

24 THE COURT: If you fail to appear at court
25 proceedings, Mr. Russell, I will dismiss your petitions.

1 You can't pick and choose when you want to appear in court.
2 You understand that?

3 MR. RUSSELL: I understand.

4 THE COURT: I will dismiss your petitions if you
5 fail to appear at further proceedings.

6 MR. RUSSELL: I -- I understand. I will not be
7 appearing and I'll expect you to dismiss those petitions,
8 though I believe it's inappropriate and I will appeal it.
9 But --

10 THE COURT: I have no problem. Appeal it.

11 MR. RUSSELL: Yeah. No, of course. It's not a
12 --

13 THE COURT: September 24th at 2:30? Does that
14 work, Mr. Weddle?

15 MR. WEDDLE: It -- it does not, Your Honor. I'm
16 in front of another judge at that precise time.

17 MR. RUSSELL: And, Judge, I'm not -- I'm not
18 available --

19 MR. WEDDLE: I could do 3:30. I could do --

20 MR. RUSSELL: -- as well.

21 THE COURT: I can't -- Mr. Russell?

22 MR. RUSSELL: Yes?

23 THE COURT: I can't hear you when you speak over
24 other people. What are you saying?

25 MR. RUSSELL: I agreed I -- I am also not

1 available on September 24th.

2 THE COURT: Okay. So that's fine. I have plenty
3 of other times to throw out. How about September 29th in
4 the morning?

5 MR. WEDDLE: That's -- oh, I'm sorry, Judge, I'm
6 looking at the wrong month. It's a terrible morning,
7 Judge.

8 THE COURT: No good?

9 MR. WEDDLE: No good, and I have a trial that
10 afternoon.

11 MR. RUSSELL: I'm also unavailable on September
12 29th.

13 THE COURT: Okay. October 1st?

14 MR. WEDDLE: In the afternoon.

15 THE COURT: I can do the afternoon, Friday,
16 October 1st?

17 MR. WEDDLE: Can we do 3:00?

18 THE COURT: We can.

19 MR. RUSSELL: I'm available on October 1st at
20 3:00.

21 THE COURT: Ms. Russell?

22 MS. RUSSELL: Me?

23 THE COURT: Yes?

24 MS. RUSSELL: Boy, I don't know, but I shall
25 certainly try.

1 THE COURT: Are you planning on hiring an
2 attorney, Ms. Russell?

3 MS. RUSSELL: No. No.

4 MR. RUSSELL: Procedural question, Your Honor.
5 Does -- do these need to be grouped? Is -- is my mother --
6 is Linda Russell able to pursue this independently or will
7 we always be having these kind of --

8 THE COURT: No, it's --

9 MR. RUSSELL: -- everything (inaudible) --

10 THE COURT: It's pretty typical when there are --
11 when there are related proceedings involving one child that
12 they're heard at the same time.

13 MR. RUSSELL: Uh-huh.

14 THE COURT: It's typical. I mean, it's not -- if
15 there was some reason to separate them, I would do that,
16 but I don't see a reason at this point to separate the
17 proceedings.

18 MR. RUSSELL: And you're aware that -- that the
19 loss of the AFC is due to my whistleblower status against
20 Faith Miller and --

21 THE COURT: I'm not aware of that. I'm aware
22 that you say that. But I don't know what you mean by
23 whistleblower status.

24 MR. RUSSELL: Would you like me to address it?

25 THE COURT: Are you aware, Mr. Weddle?

1 MR. WEDDLE: I -- I -- I'm not entirely aware. I
2 -- I suspect it's because of Ms. Miller's relationship with
3 a member of the bench, but I don't know that for sure.

4 THE COURT: Okay. Go -- go ahead, Mr. Russell.

5 MR. RUSSELL: Whistleblower status in this case
6 is cooperating with the county, state, and federal
7 authorities. It includes testimony that began with
8 Gordon-Oliver's appointment of two individuals. Probably
9 the -- the core of the investigation is around Raymond
10 Griffin, who has turned out to be a fake doctor, who harmed
11 a lot of people over 30 years. He has fled the state. He
12 has been delicensed.

13 THE COURT: Okay. I'm aware of Dr. Griffin. So
14 you're saying you were a whistleblower with respect to
15 Dr. Griffin?

16 MR. RUSSELL: I'm the reason he no longer is
17 licensed and fled the state, yes.

18 THE COURT: Okay.

19 MR. RUSSELL: And part --

20 THE COURT: But I don't understand how this
21 relates to this litigation.

22 MR. RUSSELL: He -- he appointed Faith Miller,
23 Delia Farquharson and Raymond Griffin and as well as the
24 main assertion of jurisdiction that were inappropriate and
25 under investigation, specifically with Faith Miller.

1 Mr. Weddle is right. Because of her relationship with
2 Alan Scheinkman, she, in a decision, was embargoed from
3 participating in exactly this type of -- of AFC appointment
4 because of --

5 THE COURT: Okay. So, Mr. Russell, I'm not sure
6 I understand what you're saying because the Court assigns
7 attorneys to represent children on the basis of a list.
8 We're required to do that. If someone is not on that list,
9 we cannot assign them. So I don't understand really what
10 you're talking about.

11 You're referring to people that were -- that are
12 used in the court all the time. I understand something
13 happened with Dr. Griffin. He's no longer on the list. We
14 can no longer assign him.

15 MR. RUSSELL: I -- I'm -- I'm --

16 THE COURT: Ms. Farquharson, she's still on the
17 list.

18 MR. RUSSELL: I'm informing you that I am
19 cooperating with county, state, and federal folks with
20 relation to all the individuals I mentioned. I attempted
21 to share some of the details. I don't need to, but being a
22 whistleblower means that under the whistleblower statute, I
23 have notified what I know. I have agreed to cooperate. I
24 have been cooperating and indeed the delicensing of Griffin
25 should serve as, you know, I think strong indication that I

1 am -- you know, that I've been effective and what I've
2 brought forward has been considered to be, you know,
3 valuable, useful, appropriate information.

4 THE COURT: But, again, how does that impact
5 litigation? And, by the way, I thought I saw that
6 Dr. Griffin's report was favorable to you.

7 MR. RUSSELL: The -- Dr. Griffin wrote a -- a
8 report that stated that Ms. Walsh did not have a problem
9 with drugs and alcohol when she --

10 THE COURT: Oh, I see, okay.

11 MR. RUSSELL: -- is in AA, yeah.

12 THE COURT: Enough -- enough said, Mr. Russell.

13 MR. RUSSELL: And that -- that (inaudible).

14 THE COURT: I understand. Enough said. So but
15 how does the fact that you're a whistleblower and you're
16 cooperating with county, state, and federal investigators
17 impact this litigation? Like what does that have to do
18 with this case?

19 MR. RUSSELL: Well, in -- in -- in this case,
20 Ms. Jackman specifically as Faith Miller's partner is
21 conflicted under the same order that prevents Faith Miller
22 from taking those seats, so.

23 THE COURT: Okay. So that's fine, and she's been
24 relieved.

25 MR. RUSSELL: Well --

1 THE COURT: Is there any other impact on the
2 litigation at this point?

3 MR. RUSSELL: You know, the -- the -- the net
4 effect of the items that, you know, you've sort of
5 stipulated to at this point has been that the AFC -- you
6 know, the only report in the catalog right now is from a
7 fake doctor. The AFC in this case, who's been dismissed,
8 should not have been a part of this. And Horowitz kept my
9 daughter away from me a year and a half.

10 And what I'd ask is rather than taking this --
11 you know, maybe to make a point, but that there is no
12 reason that visits as previously ordered when my daughter
13 had representation can't be continued now that you know
14 that Mr. Weddle's accusations are not true.

15 And Evie's interest is the first, the primary,
16 interest of this Court. There -- there is no basis for --
17 for really any of this, and my daughter deserves to have a
18 grandmother and a father. And I would appeal to you that
19 to, just for a moment, set aside the obvious fact that I am
20 not a lawyer and you could browbeat me with every mistake I
21 make. I hope I make very few.

22 But my daughter is three and a half years old and
23 she loves her dad. We have a great time. She loves her
24 grandma. They have a great time. And it would be
25 wonderful if she could be reconnected with her father and

1 her grandmother while, you know, we go through what is --

2 THE COURT: It would. I agree with you,
3 Mr. Russell.

4 MR. RUSSELL: -- (inaudible).

5 THE COURT: When was the last time you were in
6 New York?

7 MR. RUSSELL: I -- I am in New York whenever
8 allowed. It's literally a four-hour flight, Your Honor,
9 and I can be there whenever. I am not allowed by Steve
10 Walsh to do this. I am simply not allowed and people -- I
11 -- I cannot tell you how much I resent the question because
12 it implies that I have quote not been taking my visits, and
13 this is just a lie. It is a straight up lie.

14 THE COURT: Mr. Weddle?

15 MR. RUSSELL: I lived in Chappaqua for a year.

16 THE COURT: Okay, one moment. Mr. Weddle?

17 MR. WEDDLE: Judge, this cuts directly to the
18 core of the case. I mean, Mr. Russell appears to want to
19 skip the trial and go straight to him having custody. I --
20 I have directed --

21 MR. RUSSELL: That's baseless.

22 MR. WEDDLE: I don't know what my client's family
23 has to do with this. I imagine that's evidence that will
24 be determined at trial, but we're really going to the core
25 or the substance of these -- these battling petitions.

1 MR. RUSSELL: I'll -- to -- you know, a quick
2 rebuttal, Your Honor.

3 MR. WEDDLE: Well, I didn't -- actually, I wasn't
4 quite finished.

5 MR. RUSSELL: Oh, then I'll stop.

6 MR. WEDDLE: I mean, the other -- the other
7 puzzling thing is that Mr. Russell has said that he's not
8 going to participate in forensics. He is not going to
9 participate in court conferences, which makes me question
10 in some level what it is that's truly important to
11 Mr. Russell; whether it is the relationship between him and
12 his daughter, which I agree with the Court is -- is
13 important. And if they can have a healthy and safe and
14 wonderful relationship, that's -- that's best for the child
15 but --

16 THE COURT: So if you are available to come to
17 New York, Mr. Russell, I'm going to have a new AFC on the
18 next court date, October 1st. We are certainly going to
19 discuss your access with your daughter. And you are
20 certainly free to continue to talk to Mr. Weddle to see if
21 you can resolve this, you know, in a manner that you and
22 Ms. Walsh find acceptable.

23 But I'm -- I am out of time, and so we're going
24 to have to conclude the proceedings. I will see you all
25 October 1st at 3:00. Thank you.

1 MS. RUSSELL: Is that on this -- on this thing or
2 in court?

3 THE COURT: It's by -- it's virtual.

4 MS. RUSSELL: Okay. Okay.

5 THE COURT: You'll get another link.

6 MS. WALSH: Your Honor?

7 THE COURT: And I encourage you, Ms. Russell, to
8 get an attorney as well. Thank you.

9 MR. WEDDLE: Thank you, Judge.

10 MS. RUSSELL: Thank you, Your Honor.

11 COURT OFFICER: Off the record.

12 MR. RUSSELL: I will note that I was not given a
13 chance to respond to Ms. --

14 (12:12:50 p.m.)[PROCEEDING CONCLUDED]

15 CERTIFICATE: I, Valeri Wilson, certify the foregoing transcript
16 of proceedings held at Yonkers Family Court, NYS, Walsh vs.
17 Russell, File #154703, multiple dockets, was prepared using the
18 required electronic equipment and is a true and accurate record
19 of the proceedings.

20 Signature: Date September 14, 2021

21 *Valeri Wilson*
Electronic signature

22

23

24

25

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